

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Abigail Braden	Team: Team # 2	CCRB Case #: 200203445	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Sunday, 05/19/2002 3:00 AM	Location of Incident: § 87(2)(b) & § 87(2)(b)	Precinct: 47	18 Mo. SOL 11/19/2003	EO SOL 11/19/2003	
Date/Time CV Reported Mon, 05/20/2002 7:48 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 05/23/2002 7:26 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM An officer			
2. POM Michael Mchugh	09788	925715	047 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Fadila Metanovic	12278	926428	PBBX
2. POM Jack Knowles	03791	921466	047 PCT
3. POM Marlon Larin	13391	926424	047 PCT
4. SGT David Melendez	02436	901996	047 PCT
5. POM Jason Pierri	18557	922972	047 PCT
6. SGT Spiridon Katehis	91583	915983	TB DT12

Officer(s)	Allegation	Investigator Recommendation
A.POM An officer	Force: An officer used physical force against § 87(2)(b)	
B.POM An officer	Abuse: An officer threatened § 87(2)(b) with the use of force.	
C.POM An officer	Discourtesy: An officer spoke obscenely and/or rudely to § 87(2)(b)	
D.POM Michael Mchugh	Abuse: PO Michael Mchugh did not obtain medical treatment for § 87(2)(b)	

Synopsis

§ 87(2)(b) who was § 87(2)(b) at the time of the incident, stated that on May 19th, 2002, at about 3AM, he and his friend § 87(2)(b) walked past a car that had been vandalized. At that time, a police car pulled up, and § 87(2)(b) who did not want to get in trouble, ran; § 87(2)(b) ran in the opposite direction. § 87(2)(b) hid under some bushes in a yard for about half an hour before the police found him. § 87(2)(b) alleged that about eight officers dragged him out from under the bushes and then proceeded to kick and punch him. Because part of the yard was concrete, § 87(2)(b) sustained scratches to his face and hands, as well as back pain from the kicks. He was arrested and taken to the 47th Precinct station house, where he waited for six to seven hours before receiving medical treatment, despite his requesting it. § 87(2)(b) was charged with attempted grand larceny auto, criminal mischief, auto stripping, and possession of burglar's tools. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Summary of Complaint

On May 20th, 2002, at 7:48AM, § 87(2)(b) called IAB to report an incident with her son that occurred the day before, on May 19th, at 3AM (enc. 3). § 87(2)(b) stated that her son, § 87(2)(b) was standing on the corner of § 87(2)(b) and § 87(2)(b) in the Bronx with some friends. They were standing near a car with an open window when they were approached by four to five officers. They started to run, but were apprehended and brought to the 47th Precinct. § 87(2)(b) responded to the precinct to pick up her son, at which time she learned that he had bruises on his chin, face, and hands. He also told her that he had been kicked several times in the back. A female police officer told § 87(2)(b) to take her son to the hospital because he was complaining of back pain. § 87(2)(b) took her son to § 87(2)(b) where he was given Motrin.

Later that day, IAB detectives did a call-out and interviewed § 87(2)(b) (enc. 4), who said he and his friend § 87(2)(b) (later revealed to be § 87(2)(b)) walked past a car with a broken window. A marked police car pulled up, and § 87(2)(b) thinking the officers thought that he had broken the window, started to run; § 87(2)(b) ran in another direction. § 87(2)(b) hid in the bushes of a house for about 30 minutes before being found by five male white police officers, who kicked him several times (un-specified where). § 87(2)(b) claimed that as a result of the kicks, he sustained scratches to his hands, chin, and face. § 87(2)(b) was handcuffed and brought to a police car, where he saw § 87(2)(b) again. The IAB detectives took pictures of § 87(2)(b) (enc. 4E-F), which show a small scratch on the bottom of his chin and minor cuts to his hands.

§ 87(2)(b) was interviewed at the CCRB on June 13th, 2002 (enc. 7). He stated that at around 9PM, he and his friend, § 87(2)(b) left § 87(2)(b)'s house at § 87(2)(b) in the Bronx to go to the Taco Bell on the corner of § 87(2)(b) and § 87(2)(b). § 87(2)(b) said that § 87(2)(b) whose last name he doesn't know, is § 87(2)(b) and is a short, dark-skinned black kid, and he does not have braids in his hair. § 87(2)(b) and § 87(2)(b) had been hanging out at § 87(2)(b)'s house all day. § 87(2)(b) said that on § 87(2)(b) he and § 87(2)(b) walked past a car "that had already been vandalized." § 87(2)(b) said this was a gray old Buick sedan, and the front passenger window was broken. There was glass on the ground, but nothing else, and no people were there. At that time, a marked RMP, with PO1 (white male, brown hair, 5'4"-5'6", unidentified) and PO2 (white male, 5'4"-5'6", unidentified) inside, pulled up to the light on the corner of § 87(2)(b) and § 87(2)(b) pulling over to the right side of the street, where he and § 87(2)(b) were standing. § 87(2)(b) said he hadn't been planning on running, but § 87(2)(b) started to run. When asked why he ran, § 87(2)(b) said, "Cause I didn't want to get in trouble . . . I didn't want them to think I was doing nothing." § 87(2)(b) denied that he and § 87(2)(b) had done anything on the way to the Taco Bell. § 87(2)(b) then ran in the opposite direction of § 87(2)(b) who took a right down § 87(2)(b) and § 87(2)(b) ran to the left on § 87(2)(b). PO1 and PO2 started to chase § 87(2)(b) right away.

§ 87(2)(b) said that he hid under the bushes in the front yard of a friend's house. § 87(2)(b) did not know this friend's name or his exact address, but said it was on § 87(2)(b) and § 87(2)(b). § 87(2)(b) said that he hid for about 30 minutes before the cops found him. § 87(2)(b) said that this yard has portions of both grass

and concrete. Eventually, an officer shone his flashlight into the bushes, and they found § 87(2)(b) said that there were at least 8 officers who found him, but because there were so many, he couldn't describe any of them except for PO3 (short, 5'5", white male, blond hair, 25-26 years old, whom he saw later at the precinct, possibly PO McHugh). The officer with the flashlight said, "He's right here! Freeze!" § 87(2)(b) said that he was kneeling on the ground. Six officers then "jumped on" him, and starting "beating him up." He said that as he was on his knees, with his hands up, an officer (unknown who) kicked him, causing him to fall onto his stomach on the ground. As he was face-down on the ground, all the officers started kicking him. The kicks landed on his back and his ribs, and § 87(2)(b) estimated that they kicked him "over eight" times. One officer also punched him in the face, hitting him on the left side of his chin area. He also said that during this time, the kicks caused § 87(2)(b)'s hands, which were splayed out in front of him, to scratch the concrete. The officers were kicking him for about 5 minutes.

§ 87(2)(b) said that the officers grabbed him by his shirt and pulled him to his feet. He was then handcuffed. He was placed into a police car, with PO4 (white female, black hair, driving the car, possible PO Metanovic) and PO5 (white male, unidentified). § 87(2)(b) said that while he was in the car, PO6 (white male, nothing else remembered about him, but § 87(2)(b) could "probably" pick him out of a picture), came over. PO6 said to him, "If you don't tell us where your friend is, we're going to fuck you up again." § 87(2)(b) also saw § 87(2)(b) in the middle of the street—§ 87(2)(b) was on his knees, at the corner of § 87(2)(b) and § 87(2)(b). From the time that the officers found § 87(2)(b) under the bush until the time he was placed into the RMP, the incident took about 15 minutes. § 87(2)(b) was taken to the 47th Precinct and placed in a cell with § 87(2)(b). § 87(2)(b) also said that while he was in the cells, PO3 approached him and started talking "mad garbage." PO3 said, "Don't make us beat you up again." This comment made § 87(2)(b) think that PO3 had been one of the officers kicking him on the street. § 87(2)(b) said he also spoke to a lieutenant, PO7 ("fat" white male, red hair, glasses, gold badge and a white shirt), who told him to "shut the fuck up," when § 87(2)(b) asked to call his mother.

§ 87(2)(b) also alleged that the officers wouldn't give him medical attention. § 87(2)(b) said that he was saying to the officers, "Can you call an ambulance or get me some alcohol pads?" PO7 just told him to "shut the fuck up." § 87(2)(b) heard § 87(2)(b) ask for medical attention. § 87(2)(b) said that he had lots of bruises and scrapes, but was not given any medical attention until his mother came to the precinct, almost six to seven hours later. At that time, 2 Puerto Rican EMTs, a man and a woman, came to the precinct and treated him in the cells. § 87(2)(b) said that his mother picked him up from the precinct. § 87(2)(b) said that his mother said to him, "There might be something wrong with your back, do you want to go to the hospital?" § 87(2)(b) told her that he did. However, § 87(2)(b) did not hear his mother ask a police officer for medical attention for him. § 87(2)(b)'s mother took him to § 87(2)(b) later that evening. § 87(2)(b) said that he was given a prescription for painkillers, although his back is still hurting.

Results of Investigation

§ 87(2)(b) and § 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on June 13th, 2002 (enc. 8). § 87(2)(b) said that § 87(2)(b)'s father called her to tell her that § 87(2)(b) was at the precinct. She then called the precinct and an officer told her that § 87(2)(b) would be taken to Spofford because he was § 87(2)(b). § 87(2)(b) said she would go to the precinct with his identification saying that he was only § 87(2)(b). At the precinct, § 87(2)(b) spoke to a white male officer with red hair (likely PO McHugh), who told her that § 87(2)(b) had a "big mouth" and that she should learn to control her son. § 87(2)(b) also said that she spoke to a Hispanic female officer who told § 87(2)(b) to take her son to the hospital; when § 87(2)(b) asked why, the female officer said, "Cause he was beat up." § 87(2)(b) said that her son was not given any medical treatment at the precinct. She did not see EMS there and no one told her anything about them having been there or coming. § 87(2)(b) said that after they left the precinct, at about 7:30AM, they went to § 87(2)(b) where § 87(2)(b) was given Motrin. § 87(2)(b) confirmed that § 87(2)(b) had scratches and bruises on his face, hands, and back.

§ 87(2)(b) told the IAB and CCRB investigators that he did not have any contact information for § 87(2)(b) and did not even know his last name. An arrest report for § 87(2)(b) was located in

BADS (enc. 32), but this report does not have a complete address for him—it just says § 87(2)(b) in the Bronx. MetroSearch and DMV queries were done on his name and for § 87(2)(b) but with negative results. The arrest report also lists a phone number, as both § 87(2)(b) and the number he called from the precinct, to ‘§ 87(2)(b)’. However, reverse phone number checks were negative for an address, and the number has been disconnected. Queries for an § 87(2)(b) were also negative (see IAs, enc. 38).

Photo Array Viewings

On October 25, 2002, § 87(2)(b) viewed four photo arrays and 25 large single photos of officers (enc. 9). The arrays were of PO Metanovic and PO Conway, the two female officers on the roll call, and Lt. O’Sullivan and Lt. Slattery (potential “PO7”s), who were also on the roll call. § 87(2)(b) did not recognize any of the four officers. The 25 single photos were of every responding officer from the 47th Precinct from the two tours that covered the incident, as well as some PSA 8 housing officers. § 87(2)(b) recognized only two officers, PO Knowles and PO McHugh, whom he said he just saw at the incident location and at the precinct. When asked, § 87(2)(b) said these officers did not do or say anything specific to him. Subsequently, on January 31, 2003, § 87(2)(b) viewed another group of photographs, which were obtained as per information from PO McHugh, during his CCRB interview, about the identity of the housing officers involved in the complaint. This group of photographs contained one of every male Hispanic officer working one of the two tours on the PSA 8 roll calls. § 87(2)(b) did not recognize any of these officers. § 87(2)(b) viewed the two female officer arrays, in an attempt to discover who told her to take her son to the hospital, on October 25, 2002 (enc. 10). § 87(2)(b) did not recognize either officer.

PO McHugh and PO Metanovic

PO McHugh and PO Metanovic, who were interviewed at the CCRB on September 23, 2002 (enc. 16) and August 28, 2002 (enc. 12), respectively, stated that on May 18, 2002, they were assigned to sector C/D, in uniform, in marked RMP #1868. Both officers said that they responded to a radio-run of a 10-32, a vehicle larceny in progress. PO McHugh said that the radio run included the information that the perpetrators were two male blacks, short, and were breaking into a 4-door, blue sedan; PO Metanovic said that neither descriptions of the vehicle or the perps were given over the radio. They responded to § 87(2)(b) and § 87(2)(b) and were the first officers on the scene. They did not use their lights or sirens on approach; PO McHugh said that when he pulled up on the scene, one male black was reaching through the driver’s side window, which had been broken, of the car. Half of his body was in the window. PO McHugh pulled up, both he and PO Metanovic exited his RMP, and identified himself as a police officer. PO McHugh did not think that the males noticed him until this point. PO McHugh asked the male not to move. PO McHugh did not see the second male at this time. PO Metanovic remembered seeing both males “on the car,” and when PO McHugh turned the headlights on, they fled.

One male (later identified by PO McHugh as § 87(2)(b)) fled down § 87(2)(b) towards § 87(2)(b). PO McHugh and PO Metanovic got back into the RMP to pursue him; however, at that time, he saw the second male black (later identified as § 87(2)(b)) exit the vandalized car from the front passenger seat, and flee into a backyard towards § 87(2)(b), the opposite direction from § 87(2)(b). PO McHugh got out of the RMP and proceeded to chase § 87(2)(b). PO Metanovic was in the car. In the meantime, he put over the radio a description of § 87(2)(b) who had fled down § 87(2)(b). The second male jumped over two fences, and PO McHugh, in pursuit, put over a description of him, as well. PO McHugh said that he had lost sight of this male by this time, so he went back to the RMP and went to the initial location to safeguard the vandalized car. PO McHugh said that he heard over the radio that other officers were responding, which also caused him to stop chasing § 87(2)(b). PO McHugh said that this chase lasted such a short time, about 10-15 seconds, so PO Metanovic did not have the chance to assist in it. PO Metanovic said she had gotten out of the RMP, but PO McHugh was faster than she; by the time she saw him again, he had lost the perpetrator and was on his way back towards her. She said they walked around the block to canvass, at about which time multiple other units started to arrive.

PO McHugh said at that time, he recovered a silver hammer, a black and white screwdriver, and a yellow screwdriver from the area of the car—two of these objects were on the ground of the passenger side, and the third was in the street between the vehicle and § 87(2)(b). § 87(2)(b) had dropped this one when he

ran. PO McHugh said that besides the broken window, there was interior damage that appeared that the boys had tried to break the radio out. There was also some damage done to the passenger side door.

About 2-3 minutes after PO McHugh had returned to the car, he was called back to the location of § 87(2)(b) and § 87(2)(b) by another unit, who said they were holding one possible. PO McHugh responded there, where two housing officers were holding § 87(2)(b) already handcuffed. PO McHugh said that the housing officers were Hispanic males in uniform; he did not get or write down their names or shield numbers. He said, “I put § 87(2)(b) in the car and they were gone.” PO McHugh identified him as § 87(2)(b) because he had been able to “get a good look at him” and because he fit the description. The housing officers said that § 87(2)(b) had been hiding under some bushes in the front yard of a house, with a black pail, for flowers or something, over his head. When asked if the officers said that they had to use force against § 87(2)(b) PO McHugh said that they didn’t say. However, PO McHugh saw that § 87(2)(b) had scratches on his hands and a little bruise on his chin area. PO McHugh said that § 87(2)(b) was wearing pants and he didn’t know if his knees were injured. PO Metanovic said that eventually, either a housing or anti-crime unit brought § 87(2)(b) to her, already handcuffed.

PO McHugh and PO Metanovic placed § 87(2)(b) in the back of their RMP. About 1 minute after PO McHugh responded to § 87(2)(b) and § 87(2)(b) the precinct anti-crime radioed saying that they were holding another possible, who fit the description of § 87(2)(b). PO McHugh and PO Metanovic, in their RMP and with § 87(2)(b) responded to § 87(2)(b) and § 87(2)(b) where officers were holding § 87(2)(b). § 87(2)(b) was lying down in the street, but was not, according to PO McHugh, handcuffed, although PO Metanovic said he was already handcuffed. PO McHugh said he handcuffed § 87(2)(b) and put him into his RMP with § 87(2)(b). PO Metanovic could not remember if they transported this male as well. Both PO McHugh and PO Metanovic denied telling § 87(2)(b) at any time while they were in the RMP, “If you don’t tell us where your friend is, we’re going to fuck you up again,” or, “Don’t make us beat you up again.” PO Metanovic said that during the transport, § 87(2)(b) was either silent or cursing at the officers, although he did not allege that officers had beaten him up.

§ 87(2)(b) and § 87(2)(b) were taken to the 47th Precinct station house. At the station house, § 87(2)(b) told PO McHugh that he had been beaten up and wanted to get looked at, and PO McHugh told him that he would get him an ambulance. PO McHugh said that § 87(2)(b) brought this to his attention for the first time at the station house. PO McHugh said that because of § 87(2)(b)’s age—i.e., that he was a minor—he needed to contact a parent or guardian before he could get § 87(2)(b) medical assistance. PO McHugh said it took a very long time to contact a parent because § 87(2)(b) did not have any phone numbers on him. § 87(2)(b) was also telling PO McHugh that his name was “§ 87(2)(b)” and that he was § 87(2)(b). PO McHugh said that another officer at the precinct, PO Knowles, identified § 87(2)(b) from when he had arrested him the year before for being in a stolen car. PO Knowles said that § 87(2)(b) had also given him the name § 87(2)(b) and a false birthdate. § 87(2)(b)’s mother finally came in later, with ID proving that his name was § 87(2)(b) and that he was § 87(2)(b). PO Metanovic said that PO McHugh was mainly dealing with the arrest processing, although she remembered § 87(2)(b) lying about his age. PO Metanovic said she was only at the station house for about 45 minutes before being assigned to take a female prisoner to Central Booking; for a majority of that 45 minutes she was taking pictures outside of the vandalized car for arrest evidence. She did not hear either perpetrator ask for medical attention, although she was there when EMS treated them (unknown what for).

PO McHugh said that once § 87(2)(b) arrived, he called for an ambulance to treat § 87(2)(b). PO McHugh said that procedurally, he could not call an ambulance until he had contacted § 87(2)(b)’s guardian. PO McHugh said that for everyone under 19 years old, he is required to notify the guardian; he said that EMS also requires such notifications for people under 19 years as well. PO McHugh also said that a guardian must be present if the individual is going to be taken to the hospital. PO McHugh admitted that because of this, § 87(2)(b) was at the precinct for a good 2-3 hours before EMS arrived. It took such a long time because § 87(2)(b) could not remember or would not provide any numbers for his parents. However, once the EMTs arrived, both § 87(2)(b) and § 87(2)(b) refused further medical assistance—i.e., they did not want § 87(2)(b) taken to the hospital. PO McHugh said both of them signed the ACR as such and he witnessed them signing it. PO McHugh said that § 87(2)(b) was definitely aware that her son had received medical assistance from EMS, because she signed the ACR.

When asked about § 87(2)(b)'s demeanor at the station house, PO McHugh said that he was being "loud and obnoxious." § 87(2)(b) was saying that he wanted to go to Central Booking, and even after PO McHugh confronted him with the knowledge (gained from § 87(2)(b) over the phone) that he was § 87(2)(b), § 87(2)(b) insisted that he was § 87(2)(b). PO McHugh said he thought it was a "status symbol," that § 87(2)(b) wanted to act "all big and tough" in front of other prisoners. PO McHugh said that Lt. Slattery was on duty at around the time that § 87(2)(b) was at the precinct; however, PO McHugh said that he did not see Lt. Slattery speaking to § 87(2)(b) or his mother. Neither PO Metanovic nor PO McHugh heard Lt. Slattery, any other supervisor, or any other officer tell § 87(2)(b) to "shut the fuck up." PO McHugh did not see PO Metanovic speaking to § 87(2)(b)'s mother, and said that he mainly spoke to her (the mother). PO Metanovic said that she did not speak to § 87(2)(b) and when asked, denied that she told § 87(2)(b) to take her son to the hospital.

PO Knowles and PO Larin

PO Knowles, who was interviewed at the CCRB on August 28, 2002 (enc. 14), and PO Larin, who was interviewed on October 15, 2002 (enc. 22), stated that on May 18, 2002, they were assigned to sector A/B, in uniform and in marked RMP #2094.

PO Knowles stated that he and PO Larin were en route to the station house to take their meal hour, when the 10-32 came over the radio; the officers decided to respond to the job. PO Knowles didn't think that the job came over with any perp descriptions. PO Knowles said that as they approached § 87(2)(b) and § 87(2)(b) where the larceny was supposed to be happening, but before they got there, they heard a female officer's voice come over the radio stating that there was a foot pursuit in progress. When they finally got to the location, they pulled up alongside the female officer, PO Metanovic, who was running in the street westbound up § 87(2)(b). PO Knowles said that at some time, PO Metanovic stopped running and gave a description of a perp over the radio. PO Knowles did not remember what the exact description was, but said that it included race, approximate height and age, and a clothing description. PO Metanovic also put over her location and the direction of flight. PO Larin just remembered hearing either PO McHugh or PO Metanovic put the foot pursuit over the radio, chasing two males who had run into yards. PO Knowles said that by the time he had spoken to PO Metanovic and was driving off, "numerous" units had responded to the job.

Both officers said they drove around the block in their RMP, canvassing for the perp, but had negative results; they then canvassed the area on foot. PO Knowles said that they searched the front yards, and any backyards that they could gain access to, of several houses at § 87(2)(b) and § 87(2)(b) or § 87(2)(b). PO Knowles said that there were several units on the scene canvassing, all without success, so PO Knowles and PO Larin, after about 5 minutes of canvassing, decided to go back to the station house to try and take their meal. PO Knowles said that after that, a housing foot post came over the radio stating that they were engaged in a foot pursuit with an individual fitting the description. PO Knowles and PO Larin returned to "the vicinity" of § 87(2)(b) and § 87(2)(b) by that time, two unknown housing officers had a perp already handcuffed. PO Knowles said that this perp was § 87(2)(b). PO Knowles knew this because he arrested § 87(2)(b) previously § 87(2)(b). PO Larin, on the other hand, said that he and PO Knowles searched a back yard for about five minutes. When they returned to the street, PO Pierri and Sgt. Melendez, of the precinct anti-crime unit, were holding a male later identified to PO Larin as § 87(2)(b) who was handcuffed. Sgt. Melendez called PO McHugh, who arrived and positively identified § 87(2)(b).

PO Knowles and PO Larin transported § 87(2)(b) to the station house for PO McHugh and PO Metanovic. PO Larin said they transported § 87(2)(b) to the station house. It was in the car that PO Knowles recognized § 87(2)(b). PO Larin said to PO Knowles, "Doesn't he look familiar? That's § 87(2)(b)." PO Knowles denied that § 87(2)(b) was talking to the officers during the transport. § 87(2)(b) did not allege that officers had beaten him up, and he did not request medical treatment. PO Knowles said that § 87(2)(b) did not appear injured. PO Knowles denied that he or PO Larin told § 87(2)(b) "Tell us where your friend is or we're going to fuck you up again," or, "Don't make us beat you up again." PO Knowles said that he and PO Larin walked § 87(2)(b) into the station house, at which time PO McHugh took over. PO Larin said

they walked § 87(2)(b) into the house and were there for about five minutes; during that time, PO Larin saw § 87(2)(b) at the desk. PO Knowles reminded PO Larin that his name was § 87(2)(b)

Sgt. Melendez and PO Pierri

PO Pierri and Sgt. Melendez were interviewed at the CCRB on October 4, 2002 (encs. 18, 20). Both officers said that on May 18, 2002, they were assigned to anti-crime, in plainclothes, in unmarked car § 87(2)(b), a blue or green sedan. PO Pierri remembered that PO Roman was with them, while Sgt. Melendez didn't think that PO Roman was with them at the time.

PO Pierri said that he, Sgt. Melendez and PO Roman responded to the location of a foot pursuit, at § 87(2)(b) and § 87(2)(b) which had commenced because two male blacks had broken into a car on § 87(2)(b). Sgt. Melendez remembered hearing a unit call a 10-85 requesting assistance with a foot pursuit of these perpetrators. Both officers remembered hearing, either over the radio or from officers at the scene, that the two perps had fled in opposite directions and one had gone into some yards. PO Pierri saw the car, and said that one of its windows was broken. Some patrol officers went into the backyards, so the anti-crime officers went down the street, northbound towards § 87(2)(b) to find the other perpetrator. Sgt. Melendez didn't think they responded to the location of the car burglary, but instead went to a location in the vicinity of one of the perpetrator's direction of flight.

At about § 87(2)(b) and § 87(2)(b) the anti-crime officers stopped a male who fit the description. Both officers said they had a description of a young male black and what he was wearing. PO Pierri said he was driving, and Sgt. Melendez, in the passenger seat (the male was walking on the passenger side of the car), said, "Come over here for a minute." Both officers said they then got out of their car and spoke with him; PO Pierri said they asked him a few questions, such as where he was going and why he was breathing hard. Both officers said that when they stopped him, he was not running, but he appeared to have been running, and both officers said he appeared "nervous." PO Pierri said he was fidgeting and his answers to the officers' questions weren't making sense. Both officers said that they asked the male to wait with them a minute, which he did so voluntarily; both officers denied that they handcuffed him or used any other physical means to detain him. However, they did ask him to sit on the ground, and he sat, voluntarily, in the street next to the officers' car.

They then called over to the original sector (unknown which one or which officers) and said that they were holding one possible. Those sector officers arrived and positively identified the perp as the one who had run down the street. An officer from the sector handcuffed the male only after he was positively identified. Neither officer noticed if that sector had another perp in the backseat of their RMP or not. PO Pierri didn't remember if the sector or the anti-crime officers transported the male back to the station house. Neither officer saw any part of the arrest of the other perp who had run into the yards, and were not involved in this arrest. Neither officer had any further interaction with either perp at the station house.

Sgt. Katehis

Sgt. Katehis appeared for his interview on January 10, 2003 (after missing several appointments), but he was not interviewed on the record. Sgt. Katehis had no knowledge of the incident, and stated that on May 18, he worked a 1400 X 2235 hours tour, without doing any overtime, which would be noted in his memo book (enc. 23). Moreover, Sgt. Katehis had his regular days off on May 19, 20, and 21.

Medical Records

§ 87(2)(b) was treated by EMS at the 47th Precinct station house, for which an ACR was filled out (enc. 24). The EMTs arrived at the station house at § 87(2)(b). § 87(2)(b)'s chief complaint to the EMTs was, "I don't need this, I'm not sick." The EMTs noted "minor abrasions" to § 87(2)(b)'s right and left hand. They also wrote that § 87(2)(b) was "verbally aggressive and abusive," and that he "does not need or want an ambulance." The EMTs wrote that § 87(2)(b) refused further treatment, and that his mother was on the scene. § 87(2)(b) signed the ACR giving her permission for § 87(2)(b) to not be taken to the hospital.

Both § 87(2)(b) and § 87(2)(b) said that § 87(2)(b) was treated at the hospital after he was released. § 87(2)(b) said he went to § 87(2)(b) while § 87(2)(b) said it was § 87(2)(b). § 87(2)(g) his records were subpoenaed from § 87(2)(b). However, this request came back marked, “We have no information for the dates of service requested” (enc. 25). Subsequent phone calls to § 87(2)(b) revealed that, in fact, they did not have § 87(2)(b) in the system at all, for any other dates. The investigator also had negative results with § 87(2)(b) and § 87(2)(b). The investigator then called § 87(2)(b) who said that for insurance purposes, § 87(2)(b) was treated under her maiden name, § 87(2)(b). However, phone calls to NCB, § 87(2)(b) and § 87(2)(b) revealed that they did not have § 87(2)(b) § 87(2)(b) in their systems, either (see IAs, enc. 38B-C).

Police Documents

There was an extensive Sprint job for this incident (enc. 26). At 2:41AM, an unidentified female caller called 911 to report that two young black men were breaking into a car at the corner of § 87(2)(b) and § 87(2)(b). The caller provided brief clothing descriptions. As the call progresses, the woman says that the men are in the car, then that they are running—one down § 87(2)(b) and one down § 87(2)(b). The caller then says that the police are on the scene and chasing the men. Sector A is the first unit to respond; seconds later, a male officer, who sounds very out-of-breath and is likely running, puts over a description of one perpetrator. This officer then says that he is going to check some yards, and soon after that he puts over a description of the second perpetrator. The anti-crime unit then says that they are holding one possible at § 87(2)(b) and § 87(2)(b) a housing portable unit, identified only as “HA1,” says they are holding another possible at § 87(2)(b) and § 87(2)(b). The anti-crime officers then confirm that there was a positive show-up on § 87(2)(b) and Sector A says that they are transporting one male to the house. Sector C then says that they have both perpetrators. The job ends at 3:05AM.

§ 87(2)(a) FCT § 380.1

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

The two PSA 8 roll calls (enc. 36) do not list any post as “HA1”. The investigator called the ICO of that command, who stated that they designate their foot posts differently. He asked for the location of the foot post, and, from the Sprint, the investigator told him § 87(2)(b) and § 87(2)(b). The ICO stated that that would be post “190” or “175” (see. IAs, enc. 38E). The 5/18/02 tour 3 roll call shows that PO Katehis was assigned to post 190, but the officer on post 175 took the day off and this post was not re-assigned. The 5/19/02 tour 1 roll call shows that there were no officers on either post 190 or 175, and, in fact, there were no officers assigned to foot posts at all.

Notice of Claim

§ 87(2)(b) on behalf of her son and for herself independently, filed a civil suit against the City of New York on § 87(2)(b) (enc. 37). § 87(2)(b) s part of the suit is for false arrest, assault and battery, violation of civil rights, and malicious prosecution, among other things. The paperwork alleges that the false arrest and battery occurred at 1-3AM on May 19, 2002, near the Taco Bell on § 87(2)(b) and § 87(2)(b), and continued for the next 24 hours while § 87(2)(b) was “unlawfully detained” at the 47th Precinct. The claim is seeking \$10 million in damages for § 87(2)(b) and another \$2 million for § 87(2)(b) for a total of \$12 million.

Conclusions and Recommendations

Officer Identification

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b) viewed, in total, 34 single officer photos and four photo arrays—he was therefore presented with 38 potential officers. The first viewing was in late October, which was only 5 months after the incident. Besides recognizing PO McHugh and PO Knowles, § 87(2)(b) was unable to say that any of the 38 officers (of which at least 20 were actually on the scene of his arrest) were the subjects of the allegations.

Undisputed Facts

§ 87(2)(b) and § 87(2)(b) were in the vicinity of a vandalized car at § 87(2)(b) and § 87(2)(b) in the Bronx when they were stopped by the police. § 87(2)(b) ran into some yards, while § 87(2)(b) ran the opposite direction down the street. § 87(2)(b) hid in the bushes until the officers found him and handcuffed him. § 87(2)(b) sustained minor scratching to his hands and face. § 87(2)(b) was stopped by the precinct anti-crime officers and subsequently arrested. At the station house, § 87(2)(b) requested and received medical attention before being released to his mother.

Credibility

§ 87(2)(b)'s credibility was poor. Although it is understandable that a § 87(2)(b) might be nervous giving a statement to IAB officers, or to the CCRB for that matter, his statements to the two agencies differed even to the extent that § 87(2)(b) identified § 87(2)(b) as “§ 87(2)(b). Besides downplaying his involvement with the vandalized car, he also greatly diminished his negative behavior in general, such as his behavior in the station house, which even the EMTs noted, and greatly exaggerated his alleged mistreatment by the police, especially in terms of how long he was at the precinct and for how long the officers allegedly kicked him. § 87(2)(b) was slightly hostile towards this investigator during his interview, and it proved very difficult to get straight, or any, answers from him. § 87(2)(b) also proved to be not very credible and prone to exaggeration; this is most evidenced by the medical treatment allegation (discussed below). It is hard to overlook the fact that the § 87(2)(b) are suing the City for \$12 million dollars; although it is undisputed that § 87(2)(b) was injured, the minor scrapes to his chin and hands hardly constitute the brutality the § 87(2)(b) allege in the notice of claim.

The officers, on the other hand, were all credible, especially PO McHugh, who provided a very clear, detailed statement and brought a lot of paperwork with him to his interview. There are discrepancies across the officer statements, some of them major, but these appear to be the result of memory lapses and mistakes rather than any intentional efforts to cloud the truth.

Allegation A: Force: An officer used physical force against § 87(2)(b)

§ 87(2)(b) alleged that after the police found him hiding under the bushes, they dragged him out from underneath them, then proceeded to kick and punch him over eight times and for about five minutes.

§ 87(2)(b), § 87(2)(g)

It is undisputed, from officer testimony to the Sprint records, that officers assigned to a housing foot post found and handcuffed § 87(2)(b) at § 87(2)(b) and § 87(2)(b) § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Allegation B: Abuse of authority: An officer threatened § 87(2)(b) with the use of force.

§ 87(2)(b) alleged that when he was in an RMP after being arrested, “PO6” approached him and said, “If you don’t tell us where your friend is, we’re going to fuck you up again.” § 87(2)(b) also alleged that PO3 told him, “Don’t make us beat you up again.” § 87(2)(b) said that he could not describe PO6 anymore than to say that he was a white male, although he also said that he could pick him out of a picture. The identity of PO3 has already been discussed. Regardless, out of the 38 officer photos that § 87(2)(b) viewed, he did not identify any officer as the subject of either of these statements. In fact, when asked specifically about these statements, § 87(2)(b) said that he did not see the officer who made these statements in the group of photographs. § 87(2)(b), § 87(2)(g)

Allegation C: Discourtesy: An officer spoke obscenely and/or rudely to § 87(2)(b)

§ 87(2)(b) also alleged that while he was in the cell, “PO7” told him to “shut the fuck up” when he asked for medical treatment and for his mother. § 87(2)(b) described PO7 as a white male with red hair wearing a white shirt, and he thought he was a lieutenant. The only supervisors above sergeant on duty at that time were Lt. Slattery and possibly Lt. O’Sullivan, both of whom have dark brown hair. § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Allegation D: Abuse of authority: PO Michael McHugh did not obtain medical treatment for § 87(2)(b)

Although § 87(2)(b) recognized that he was ultimately treated by EMS at the station house, he was upset that he allegedly had to wait for six to seven hours before receiving this treatment. § 87(2)(b) also claimed that her son was injured, and she was unaware that EMS had treated him. § 87(2)(g)

The command log reflects that § 87(2)(b) was brought into the house at § 87(2)(b), and the EMTs noted that they arrived at the station house at § 87(2)(b), a difference of § 87(2)(b) hours. This time frame is much closer to PO McHugh's estimate that § 87(2)(b) had to wait § 87(2)(b) hours before being seen by EMS. § 87(2)(b), § 87(2)(g)

PO McHugh said that § 87(2)(b) had to wait for the ambulance because he needed to notify his guardian first. Moreover, he said that EMS would also need a guardian's permission for treatment and to go to the hospital for anyone under 19 years old. However, PO McHugh was unable to make this notification expeditiously because § 87(2)(b) would not give him his parents' contact information. § 87(2)(b), § 87(2)(g)

There is, however, no specific Patrol Guide Procedure governing obtaining medical treatment for juveniles, and none of the other related procedures mention it. It is true that officers do have to notify a parent or guardian when they have a juvenile in custody, § 87(2)(b), § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: